

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE
FOR

SENATE BILL 1161

By: Hall and Haste of the
Senate

and

Caldwell (Trey) and Kane of
the House

COMMITTEE SUBSTITUTE

An Act relating to the Oklahoma Health Care Authority; amending Section 70 of Enrolled Senate Bill No. 1177 of the 2nd Session of the 60th Oklahoma Legislature, which relates to general appropriations; modifying certain date; providing for duties and compensation of administrators and employees; authorizing payment of certain expenses; authorizing certain transfers; requiring certain transfers; authorizing certain early transfer requests; authorizing the exemption of unanticipated federal funds from expenditure and budgetary limitations; providing procedures; requiring certain budget procedures; prohibiting certain budget procedures; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 70 of Enrolled Senate Bill No. 1177 of the 2nd Session of the 60th Oklahoma Legislature, is amended to read as follows:

1 There is hereby appropriated to the Oklahoma Health Care
2 Authority from any monies not otherwise appropriated from the Health
3 Care Enhancement Fund of the State Treasury for the fiscal year
4 ending ~~June 30, 2025~~ June 30, 2027, the sum of Ninety-nine Million
5 Four Hundred Ninety-four Thousand Four Hundred Fifty Dollars
6 (\$99,494,450.00) or so much thereof as may be necessary to perform
7 the duties imposed upon the Authority by law.

8 SECTION 2. A. The duties and compensation of employees, not
9 otherwise prescribed by law, necessary to perform the duties imposed
10 upon the Oklahoma Health Care Authority by law shall be set by the
11 Administrator of the Oklahoma Health Care Authority.

12 B. The Oklahoma Health Care Authority is authorized to:

13 1. Pay professional expenses of the Administrator of the
14 Authority including dues, licenses, professional memberships, and
15 continuing education classes conducted in this state; and

16 2. Pay professional expenses of any employee including dues,
17 licenses, professional memberships, continuing medical education
18 classes conducted in this state, and medical malpractice insurance
19 provided he or she is a full-time employee of the Authority in
20 accordance with subsection B of Section 5006 of Title 63 of the
21 Oklahoma Statutes and is utilizing those professional skills in the
22 performance of his or her job duties.

23 SECTION 3. A. In order to facilitate cash management of
24 federal grant receipts and disbursements, the Oklahoma Health Care

1 Authority is authorized to transfer appropriations, apportionments,
2 fees, fines, and other revenues received in any fund to Funds 200,
3 245, 340, and 425 as necessary to satisfy program expenditure
4 requirements. Such transfers shall be made at the direction of the
5 Administrator of the Oklahoma Health Care Authority and shall be
6 subject to approval of the Director of the Office of Management and
7 Enterprise Services, except that the cumulative amounts transferred
8 shall not exceed the cumulative amounts of equal monthly allotments
9 of the appropriations from the General Revenue Fund and the Health
10 Care Enhancement Fund.

11 B. Monies appropriated or collected for the fiscal year ending
12 June 30, 2027, may be transferred to these disbursing funds for the
13 fiscal year ending June 30, 2026, to satisfy encumbrances and
14 obligations of such fiscal year; provided, that monies equal in
15 amount are transferred from appropriations or collections for the
16 fiscal year ending June 30, 2026, to the disbursing fund for the
17 fiscal year ending June 30, 2027, to satisfy encumbrances and
18 obligations of such fiscal year. All transfer requests shall be in
19 writing to the Director of the Office of Management and Enterprise
20 Services.

21 C. The Oklahoma Health Care Authority shall maintain records of
22 the inter-year transfers.

23 SECTION 4. The Administrator of the Oklahoma Health Care
24 Authority may request that receipt and expenditure of unanticipated

1 federal funds awarded after July 1, 2026, be exempt from expenditure
2 limitations and from budgetary limitations.

3 SECTION 5. The Administrator of the Oklahoma Health Care
4 Authority may request, through the Director of the Office of
5 Management and Enterprise Services, the early transfer by the
6 Oklahoma Tax Commission of tax collections to the General Revenue
7 Fund for the purpose of early allocation to the agency's disbursing
8 funds to alleviate cash flow problems.

9 SECTION 6. This act shall become effective July 1, 2026.

10 SECTION 7. It being immediately necessary for the preservation
11 of the public peace, health, or safety, an emergency is hereby
12 declared to exist, by reason whereof this act shall take effect and
13 be in full force from and after its passage and approval.

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